

25SMCV06003 25SMCV06003

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-27

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Case Number: 25SMCV06003 Hearing Date: August 27, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly Hills Courthouse | Department 205

SKY BOLES,

Plaintiff,

v.

JILL HENDRICKSON, et al.,

Defendants.

Case No.: 25SMCV06003

Hearing Date: August 27, 2026

[TENTATIVE] RULING RE:

MOTION TO DISMISS

This action arises from a landlord-tenant dispute. Plaintiff Sky Boles ("Plaintiff") entered into a written lease agreement with Defendants Jill Hendrickson, 53 Paloma Venice AJH, LLC, LB Property Management Inc., Albert R. Hendrickson, Jill S. Hendrickson, Trustees of the Hendrickson Family Trust Dated March 2, 2005.

Plaintiff alleges one fraud cause of action and five breach of contract claims against Defendants. As to her fraud claim, Plaintiff claims Defendants lied about the presence of cockroaches in her apartment. As to her breach of contract claims, Plaintiff alleges Defendants (1) failed to prevent her neighbors from creating a nuisance and harming Plaintiff, (2) failed to maintain the premises including fixing water leakage, roof damage and electricity problems and removing the cockroach infestation, (3) entered Plaintiff's premises without permission, and (4) failed to properly insulate the walls between apartments.

On May 29, 2026, this Court granted Defendant Jill Hendrickson's motion to declare Plaintiff a vexatious litigant. The Court's order required Plaintiff to furnish security in the amount of \$50,000. The Court ordered the bond to be posted within 30 days of its Order for the benefit of Defendant (singular). Plaintiff has not posted the required security.

This hearing is on Defendants' motion to dismiss the entire action against them. Defendants argue that because Plaintiff has not posted the ordered security, the Court must dismiss the entire action. Plaintiff has not filed an opposition to the motion to dismiss.

Pursuant to Code of Civil Procedure §391.4, "[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished." (Code Civ. Proc., §391.4.) The Court's Order granted Hendrickson's motion to declare Plaintiff a vexatious litigant, and the security was intended to benefit only her.

Hendrickson argues that her motion was filed for the benefit of all Defendants. While that may be the case, the language of the statute is clear and permits dismissal only "as to the defendant for whose benefit [the security] was ordered [to be] furnished." It does not say that dismissal applies to all defendants who benefited from the granting of a motion to declare Plaintiff a vexatious litigant. And Defendants have not cited any authority to this Court which allowed dismissal of a complaint under these circumstances.

Accordingly, the Court GRANTS the motion to dismiss Plaintiff's claims against Hendrickson, but otherwise DENIES the motion to dismiss Plaintiff's claims against 53 Paloma Venice AJH, LLC, LB Property Management Inc., Albert R. Hendrickson, Jill S. Hendrickson, Trustees of the Hendrickson Family Trust Dated March 2, 2005.

Dated: August 27, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court